
8:30 a.m. Law and Motion

IN RE: BEHNKE

CASE NUMBER: 26CV-0211150

Tentative Ruling on Petition for Change of Name: Petitioner Claudya June Behnke seeks to change her name to C.J. Bunny Behnke. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

Tentative Ruling on Three Petitions to Approve Minor Compromise: Ashish Christian seeks an order approving the compromise of claim on behalf of his minor son Josiah Christian. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minor's injuries and full recovery, the Court is prepared to find that the settlement is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minor are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minor has fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit.

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on August 7, 2026, to Petitioner and Counsel for failure to appear at the July 27, 2026 hearing. Counsel has submitted a Declaration in response to the OSC which explains the failure to appear. The OSC is **DISHCHARGED**. No sanctions will be imposed.

CLARK VS. HAYS

CASE NUMBER: 26CVG-01400

Tentative Ruling on Demurrer and Motion to Strike: Defendant Irina Hays demurs to the first and second causes of action in the Complaint, and moves to strike Item 5, 6, Attachment BC-2 and the alleged interest commencement date. Plaintiff opposes the demurrer and motion to strike.

Standard for Demurrer A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of